

Section B — Chapter 2

The President and the Vice-President

Class 10 - Total History & Civics Solutions

Multiple-Choice Questions

Question 1

Who is the head of the state of the Indian Union?

1. The Prime Minister
2. The President
3. The Chief Justice
4. The Speaker

Answer

The President

Question 2

Who is the Supreme commander of the Defence Forces of India?

1. The President
2. The Deference Minister
3. The Prime Minister
4. The Commanding Minister

Answer

The President

Question 3

Which of the following statements about the President of India are correct?

P : The President is the supreme commander of the Defence Forces.

Q : The President exercises all his powers according to his own discretion.

R : The President exercises his powers on the advice of the Prime Minister.

S : The executive power of the Indian Union is vested in the Parliament.

1. P and Q
2. P and R
3. P and S
4. S and R

Answer

P and R

Question 4

Identify the qualifications necessary for a person to be eligible for election as President of India.

P : He has completed the age of twenty-five years.

Q : He is qualified for election as a member of the Lok Sabha.

R : He is a citizen of India.

S : He is a member of a Political Party.

1. Q and R
2. P and R
3. S and R
4. P and Q

Answer

Q and R

Question 5

Identify the officials who form the electoral college for the election of President of India.

P : The elected members of both Houses of Parliament.

Q : The elected members of the Legislative Assemblies of the States.

R: Nominated members of Parliament.

S: Nominated members of Legislative Assemblies

1. P and Q
2. R and S
3. P and R
4. Q and S

Answer

P and Q

Question 6

What is the minimum age to be elected as the President of India?

1. Thirty years
2. Thirty-two years
3. Forty years
4. Thirty-five years

Answer

Thirty-five years

Question 7

Name the President of India.

1. Ram Nath Kovind
2. Narendra Modi
3. Droupadi Murmu
4. Yashwant Sinha

Answer

Droupadi Murmu

Question 8

Which of the following statements about the President of India are correct?

P : The President of India holds office for a term of six years.

Q : The President of India may submit his resignation to the Vice-President of India.

R : The President of India can be removed from office for the violation of the Constitution.

S : The President of India has the power of selecting the Council of Ministers.

1. P and S
2. Q and S
3. Q and R
4. Q and P

Answer

Q and R

Question 9

Identify the Legislative Powers of the President of India.

P : The President summons and prorogues the Houses of Parliament.

Q : The President can dissolve the Lok Sabha and order fresh elections.

R : The President can nominate two members from the Anglo-Indian Community to the Lok Sabha.

S: The President appoints the Governors of the States.

1. R and S
2. P and R
3. Q and S
4. P and Q

Answer

P and Q

Question 10

Identify the Emergency Powers of the President of India.

P: The President can proclaim National Emergency if there is a natural calamity.

Q: The President can proclaim National Emergency if an epidemic breaks out.

R: The President can proclaim National Emergency if there is a dangerous of foreign aggression, civil war, insurgency or any other cause.

S: The President can proclaim Financial Emergency if there is a setback to the financial stability of the country.

1. P and S
2. R and S
3. R and Q
4. P and R

Answer

R and S

Question 11

The power to summon Parliament is subject to the condition that there should not be a gap of more than months between two session of each house.

1. Four
2. Six
3. Three
4. Nine

Answer

Six

Question 12

For how long can President's rule be imposed in a state?

1. 1 month
2. 2 months
3. 6 months
4. 3 months

Answer

6 months

Question 13

Which article stipulates that there shall be a Vice President of India?

1. Article 12

2. Article 62
3. Article 63
4. Article 65

Answer

Article 63

Question 14

Who administers the oath of office to the President of India?

1. Comptroller and Auditor General of India
2. Prime Minister of India
3. Chief Justice of India
4. Judge of the Supreme Court

Answer

Chief Justice of India

Question 15

Identify the officials who form the electoral college for the election of the Vice-President of India.

P: Members of Lok Sabha.

Q: Members of Legislative Assemblies of States.

R: Members of Legislative Councils of States.

S: Members of Rajya Sabha.

1. P and S
2. P and Q
3. R and S
4. Q and S

Answer

P and S

Question 16

Which of the following statements about the Vice-President of India are correct?

P : He is the ex-officio Chairman of the Lok Sabha.

Q : He holds office for a term of five years.

R : He can be removed as the Vice-President by the process of impeachment.

S : He gets a salary as the Vice-President of India.

1. P and Q
2. Q and S
3. R and S
4. Q and R

Answer

Q and R

Short Answer Questions

Question 1

Name the body as well as the process involved in the election of the President.

Answer

The President is elected indirectly by the members of an Electoral College consisting of:

1. the elected members of both Houses of the Parliament
2. the elected members of the Legislative Assemblies of the States including National Capital Territory of Delhi and the Union Territory of Puducherry.

The election of the President is held in accordance with the system of proportional representation by means of a single transferable vote and the voting at such election is by secret ballot.

Question 2

Why is the President elected by indirect elections?

Answer

The President is elected by indirect elections because of the following reasons:

1. If the President were to be elected directly by the people, he could become a rival centre of power to the Council of Ministers. This would be against the parliamentary system with ministerial responsibility.
2. Since the membership in the two Houses of Parliament was likely to be dominated by one party, election of the President merely by a majority of members of the Union Parliament could make him a nominee of the ruling party like the Prime Minister. Such a President could not represent the constituent States of the Union.
3. The President is elected by an Electoral College, which consists of the elected members of the two Houses of Parliament and Legislative Assemblies of the States. This makes the President the elected representative of the whole nation with a clear voice given to the States as well.

Question 3

How can the President vacate his/her office? On what grounds can the President of India be removed from office?

Answer

The President can vacate his office by either of the following procedures-

1. The President may submit his resignation letter to the Vice-President, in order to resign his office. Such resignation will be communicated by the Vice-President to the Speaker of the Lok Sabha.
2. The President may, for the violation of the Constitution, be removed from the office by the process of impeachment.

The President may, for the violation of the Constitution, be removed from the office by the process of impeachment.

Question 4

Mention the occasion when the President addresses both the Houses of Parliament assembled together.

Answer

The President addresses both Houses of Parliament assembled together for the first session after each General Election to the Lok Sabha and at the commencement of the first session of each year. In this address he lays emphasis on the internal and external policies of the Government. The President has the power to address either House of Parliament or their joint sitting at any time.

Question 5

How is the Vice-President elected?

Answer

An Electoral College consisting of the members of both Houses of Parliament elects the Vice-President.

1. The election is held in accordance with the system of proportional representation by means of the single transferable vote.
2. The voting at such an election is by secret ballot.
3. Each nomination paper should be proposed by at least twenty electors (MPs) and another twenty electors should second the same.

Question 6

How long can the Vice-President continue to hold office even after the expiry of his/ her term?
How can the Vice-President be removed from office?

Answer

The Vice-President shall continue to hold office, notwithstanding the expiry of his term, until his successor enters upon his office.

The Vice-President can be removed from office in the following cases-

1. He may, by writing, addressed to the President, resign his office. Such resignation will be communicated by the President to the Speaker of the Lok Sabha.
2. He may, for the violation of the Constitution, be removed from the office by the process of impeachment.

Question 7

State the power of Vice-President as the ex-officio Chairman of the Rajya Sabha.

Answer

The Vice-President of the Indian Union acts as the ex-officio Chairman of the Rajya Sabha.

1. In this capacity he regulates debates and proceedings of the House and decides the order of speeches.
2. He decides the admissibility of a resolution or of questions.
3. He may suspend or adjourn the business of the House in case of grave disorder.
4. He issues directions to the chairmen of various committees in all matters relating to their working.

Structured Questions

Question 1

The President of India enjoys vast powers. In this context, briefly explain:

- (a) Any three of his/her Executive Powers.
- (b) Any three of his/her Legislative Powers.
- (c) Any two of his/her Judicial Powers.

Answer

(a) Three executive powers of the President are-

1. **Head of the Union Administration** — All executive orders are issued in the name of the President. All the Union officials are his subordinates.
2. **Control over State Governments** — The Union Government may give necessary directions to a State. During President's rule the control of the Union Government over States is complete.
3. **Union Territories and Border Areas** — The administration of the Union Territories and the Border Areas is the responsibility of the President.

(b) Three legislative powers of the President are-

1. **Addresses Sessions of Parliament** — The President addresses both Houses of Parliament assembled together for the first session after each General Election to the Lok Sabha and at the commencement of the first session of each year. In this address he lays emphasis on the internal and external policies of the Government. The President has the power to address either House of Parliament or their joint sitting at any time.
2. **Messages to Parliament** — He has the power to send messages to either House of Parliament either in the regard to any pending Bill or to any other matter.
3. **Dissolve the Lok Sabha** — He can dissolve the Lok Sabha and order fresh elections. Rajya Sabha is a permanent body, not subject to dissolution.

(c) Two judicial powers of the President are-

1. The President is not answerable before any court of law for the exercise of the powers and duties of his office.
2. No criminal suit can be initiated against him during his tenure of office.

Question 2

According to Dr. Ambedkar, "The President represents the nation but does not rule the nation." In this context answer the following questions:

(a) The President of India is referred to as a nominal head of the State. State two examples of his legislative powers that suggest his nominal status.

(b) Mention the circumstances when the President can declare a national emergency.

(c) Explain two discretionary Powers of the President.

Answer

(a) The President of India is referred to as a nominal head of the State because of the following reasons-

1. According to the Constitution, the President is required to exercise his powers on the aid and advice of the Prime Minister and his Council of Ministers.
2. All proclamations of emergency made by the President have to be approved by the Parliament within one month. If it is not approved then it ceases to exist.

(b) The President can declare a national emergency in case of danger of foreign aggression or danger to the peace and security of the country because of a civil war, insurgency or any other such cause (Article 352).

(c) Two discretionary powers of the President are-

1. When the ruling party who has lost majority support in the Lok Sabha or when a vote of no-confidence may have been passed against it, recommends to the President to dissolve the Lok Sabha, then it is at the discretion of the President to either dissolve the House or ask another party to prove its majority on the floor of the House.
2. The President can dismiss Ministers in case the Council of Ministers loses the confidence of the House but refuses to resign.

Question 3

The President may declare an emergency in a State, if he/she is convinced of the breakdown of constitutional machinery in the State. In this context, answer the following questions:

(a) When can such an emergency be proclaimed? Why is such an emergency often referred to as President's Rule?

(b) What is the duration of such an emergency? State two conditions under which such an emergency can be extended beyond one year.

(c) State the effect of the emergency on the administration of the State.

Answer

(a) If the President, on receipt of a report from the Governor or otherwise, is satisfied that the governance of a State cannot be carried on in accordance with the provisions of the Constitution,

he may declare an emergency in the State. This is called President's rule because the President may assume to himself all or any of the functions of the Government of the State.

(b) The duration of such an emergency is two months.

1. If it were to continue beyond two months, it should be ratified by the Parliament.
2. The Proclamation will cease to be valid for six months after the date of its issue even if the Parliament ratifies it.
3. It can, however, be extended for another six months.
4. Thus, President's Rule can normally continue only for a year.
5. It may be extended beyond one year, under two conditions:
 - i. When a Proclamation of Emergency is in operation in the whole of India or in any part of the State
 - ii. The Election Commission certifies that holding elections to the Legislative Assembly of the State is difficult.

(c) The effect of the emergency on the administration of the State is as follows-

1. The State administration is directly placed under the President (i.e. the Union Government). The Governor of the concerned State acts in accordance with the instructions that are issued by the Union Government from time to time.
2. The President may:
 - i. dissolve the Vidhan Sabha of the State and dismiss the Council of Ministers
 - ii. keep the Assembly and the Council of Ministers in suspended animation.In both cases, the Union Parliament can pass laws, even on all the Subjects of the State List, for that particular State. Even the Annual Budget of that State is presented to and passed by the Parliament.
3. When the Lok Sabha is not in session the President may authorise expenditure out of the Consolidated Fund of the State.
4. The President may suspend the provision of the Constitution relating to any authority of the State except those relating to High Courts.

Question 4

According to Article 63 of our Constitution "There shall be a Vice-President of India'. In this context, state:

- (a) the manner of his/her election
- (b) any three qualifications for election
- (c) two of his/her important powers

Answer

(a) An Electoral College consisting of the members of both Houses of Parliament elects the Vice-President.

1. The election is held in accordance with the system of proportional representation by means of the single transferable vote.
2. The voting at such an election is by secret ballot.
3. Each nomination paper should be proposed by at least twenty electors (MPs) and another twenty electors should second the same.

(b) A person shall be eligible for election as Vice-President, if he-

1. is a citizen of India.
2. has completed the age of thirty-five.
3. is qualified for election as a member of the Council of States.

(c) Two important powers of a Vice-President are-

1. **Chairman of the Rajya Sabha** — The Vice-President of the Indian Union acts as the ex-officio Chairman of the Rajya Sabha. In this capacity he regulates debates and proceedings of the House and decides the order of speeches. He decides the admissibility of a resolution or of questions. He may suspend or adjourn the business of the House in case of grave disorder. He issues directions to the chairmen of various committees in all matters relating to their working.
2. **Taking over as the President** — The Vice-President takes over the office of the President under the following situations:
 - i. death of the President
 - ii. resignation of the President
 - iii. removal of the President
 - iv. when the President is unable to discharge his functions owing to absence, illness or any other cause.

Picture Study

Question 1

Study the picture and answer the questions that follow:



(a) Identify the building in the picture and state where it is located. Whose official residence is it?

(b) State the qualifications necessary to become the President of India.

(c) Why is it said that the President of India is only a nominal head?

Answer

(a) The building shown in the picture is Rashtrapati Bhawan.

It is located in New Delhi. It is the official residence of the President of India.

(b) A person shall be eligible for election as President, if he —

1. is a citizen of India
2. has completed the age of thirty-five years
3. is qualified for election as a member of the Lok Sabha

(c) The President of India is referred to as the nominal head of the state because India follows a parliamentary system of Government.

1. According to the Constitution, the President is required to exercise his powers on the aid and advice of the Prime Minister and his Council of Ministers.
2. All proclamations of emergency made by the President have to be approved by the Parliament within one month. If it is not approved then it ceases to exist.

Thinking Skills

Question 1

Suppose you have a penfriend who lives in Los Angeles in the USA. He/She wants to know the difference in powers of the Presidents of India and the USA. Tell him/her the differences and also who has more powers.

Answer

The difference in powers of the Presidents of India and the USA are:

President of India	President of US
Indian president is elected indirectly by the elected members of Parliament and State Legislative Assemblies.	US president is elected directly by
Indian president is only a nominal head of the State	US President is both the Head of t of the Government.
Indian president holds office for 5 years and is eligible for re-election any number of times.	US President holds the office for 4 seek re-election only once.
The Indian Parliament includes the President, the Vice-President and the two houses — Lok Sabha and Rajya Sabha.	US president is not part of any leg responsible to the legislatures.

Question 2

Suppose riots break out in your State and there is a break down of law and order. What will the Governor of your State do and what will be its consequences?

Answer

The Governor of the State will send a report of the situation to the President and will recommend for President's rule. If the President is satisfied with the report he/she will declare an emergency in the state and impose President's rule. Consequences of President's rule in the state will be the following:

1. The State administration is directly placed under the President (i.e. the Union Government). The Governor of the concerned State acts in accordance with the instructions that are issued by the Union Government from time to time.
2. The President may:

- i. Dissolve the Vidhan Sabha of the State and dismiss the Council of Ministers; or
 - ii. Keep the Assembly and the Council of Ministers in suspended animation.
- In both cases, the Union Parliament can pass laws, even on all the Subjects of the State List, for that particular State. Even the Annual Budget of that State is presented to and passed by the Parliament.
- 3. When the Lok Sabha is not in session the President may authorise expenditure out of the Consolidated Fund of the State.
 - 4. The President may suspend the provision of the Constitution relating to any authority of the State except those relating to High Courts.

However, the duration of President's rule is two months. Beyond this, it should be ratified by the Parliament for six months. It can be extended for another six months. Thus, President's rule can normally continue only for a year.